

21STCV31601 21STCV31601

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Case Number: 21STCV31601 Hearing Date: August 3, 2026 Dept: 316

BACKGROUND

This case is an employment dispute.

Plaintiff Candy Martina Melgoza alleges that suffered from unlawful discrimination, harassment, retaliation, and wage practices while employed by Defendant Whelan Security of California, Inc.

On August 26, 2021, Plaintiff filed a complaint against Defendants Whelan Security of California, Inc., Roscoe Krease, Steve Heaney, Darryl Whitt, Veronica Valenzuela, and Sarah Becker. The complaint alleged fifteen causes of action stemming from the acts alleged above.

On March 22, 2022, the Court issued a Minute Order granting Defendants' Motion to Compel Arbitration.

On March 17, 2026, Defendant Whelan Security of California, Inc. filed a Motion to Confirm Arbitration Award.

On April 14, 2026, the Court issued a Minute Order denying Plaintiff's separate Motion to Vacate or Alter Arbitration Award.

On July 21, 2026, Plaintiff filed an opposition to Defendant's Motion.

On July 27, 2026, Defendant filed a reply.

TENTATIVE RULING

Defendant's Motion to
Confirm Arbitration Award is GRANTED.

LEGAL STANDARD

Once arbitration is concluded, "any arbitrator's award is enforceable only when confirmed as a judgment of the superior court." (O'Hare v. Municipal Resource Consultants (2003) 107 Cal.App.4th 267, 278.) Any of the parties may file a petition with the court, which must then "confirm the award, correct and confirm it, vacate it, or dismiss the petition." (Code of Civ. Proc., §§ 1285, 1286; EHM Productions, Inc. v. Starline Tours of Hollywood, Inc. (2018) 21 Cal.App.5th 1058, 1063 (EHM Productions).) "It is well settled that the scope of judicial review of arbitration awards is extremely narrow." (California Faculty Assn. v. Superior Court (1998) 63 Cal.App.4th 935, 943.) "Neither the trial court, nor the appellate court, may 'review the merits of the dispute, the sufficiency of the evidence, or the arbitrator's reasoning, nor may we correct or review an award because of an arbitrator's legal or factual error, even if it appears on the award's face.'" (EHM Productions, supra, at 1063-1064.) Courts should vacate arbitration awards only when:

(1) The award was procured by corruption, fraud or other undue means.

(2) There was corruption in any of the arbitrators.

(3) The rights of the party were substantially prejudiced by misconduct of a neutral arbitrator.

(4) The arbitrators exceeded their powers and the award cannot be corrected without affecting the merits of the decision upon the controversy submitted.

(5) The

rights of the party were substantially prejudiced by the refusal of the arbitrators to postpone the hearing upon sufficient cause being shown therefor or by the refusal of the arbitrators to hear evidence material to the controversy or by other conduct of the arbitrators contrary to the provisions of this title.

(6) An

arbitrator making the award either: (A) failed to disclose within the time required for disclosure a ground for disqualification of which the arbitrator was then aware; or (B) was subject to disqualification upon grounds specified in Section 1281.91 but failed upon receipt of timely demand to disqualify himself or herself as required by that provision. However, this subdivision does not apply to arbitration proceedings conducted under a collective bargaining agreement between employers and employees or between their respective representatives.

(Code Civ. Proc., § 1286.2, subd. (a).)

Code of Civil Procedure

section 1285.4 states: "A petition under this chapter shall: (a) Set forth the substance of or have attached a copy of the agreement to arbitrate unless the petitioner denies the existence of such an agreement. (b) Set forth the names of the arbitrators. (c) Set forth or have attached a copy of the award and the written opinion of the arbitrators, if any." Furthermore:

(a) A copy of the petition and a written

notice of the time and place of the hearing thereof and any other papers upon which the petition is based shall be served in the manner provided in the arbitration agreement for the service of such petition and notice.

(b) If the arbitration agreement does not

provide the manner in which such service shall be made and the person upon whom service is to be made has not previously appeared in the proceeding and has not previously been served in accordance with this subdivision: (1) Service within this State shall be made in the manner provided by law for the service of summons in an action.

(Code Civ. Proc., § 1290.4.)¿

Code of Civil Procedure

section 1283.6 provides that: “The neutral arbitrator shall serve a signed copy of the award on each party to the arbitration personally or by registered or certified mail or as provided in the agreement.”¿Additionally, a party may seek a court judgment confirming an arbitration award by filing and serving a petition no more than four years, but not less than 10 days, after the award is served.¿(Code Civ. Proc., §§ 1288, 1288.4.)¿¿

DISCUSSION

Here,

Defendant seeks an order confirming the arbitration award

(“Award”) entered on November 10, 2025, by JAMS arbitrator, the Honorable Elizabeth A. White (Ret.). After consideration, the Court holds that the Award shall be confirmed.

I.

Procedural

Requirements

The Court finds that Defendant has satisfied all procedural requirements in bringing its motion.

Defendant has provided a copy of the arbitration agreement and has set forth the name of the arbitrator. (See Lueng Decl., ¶ 7, Exh. A; see also Code Civ. Proc., § 1285.4, subds. (a)-(b).) A copy of the Award is also provided. (See Lueng Decl., Exh. D; see also Code Civ. Proc., § 1285.4, subd. (c).) Lastly, this motion was not filed earlier than 10 days and not later than four years after the date of service of the Award. (See Code Civ. Proc., §§ 1288, 1288.4.)

Defendant has satisfied all statutory requirements to confirm the Award.

II.

Confirming

Arbitration Award

The Court finds that Plaintiff has not

established any statutory ground for the Court to refuse to confirm the Award.

Plaintiff put forth many reasons as to why the Court should not confirm the Award. (See generally Opp'n.) However, these reasons were presented to and ultimately rejected by the Court in its prior order denying Plaintiff's Motion to Vacate Arbitration Award. For instance, the Court already rejected Plaintiff's arguments that the Award should not be confirmed because:

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The arbitrator did not allow Plaintiff to amend her complaint. (See Opp'n, pp. 4:14-7:19; Apr. 14 Minute Order, pp. 8-9.)

Ø

Plaintiff was not allowed to conduct full and essential discovery. (See Opp'n, pp. 7:22-8:23; Apr. 14 Minute Order, pp. 11-13.)

Ø

The arbitrator unjustly restricted the use of "Me Too" evidence. (See Opp'n, pp. 9:26-10:26; Apr. 14 Minute Order, pp. 12-13.)

Ø

The arbitrator improperly placed the burden on Plaintiff. (See Opp'n, pp. 11:1-13; Apr. 14 Minute Order, pp. 14-15.)

Ultimately, the Court's conclusion in its prior Minute Order was that "Plaintiff has not established any of the statutory grounds under which the Court may vacate the Arbitrator's award." (Apr. 14 Minute Order, p. 15.) Given that Plaintiff presented the same arguments in opposition to this motion, the same conclusion applies. The Court does not find any statutory grounds under which the Court would not confirm the Arbitrator's award. Therefore, the Award shall be confirmed.

CONCLUSION

For the foregoing

reasons, Defendant's Motion to Confirm Arbitration Award is GRANTED.

Judgment will be entered in conformity with the arbitration award of November 10,
2025